

**25VECV04168 25VECV04168**

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-17

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=NW%20%2CO%2C07%2F17%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F17%2F2026)

Source SHA-256: 25fc8b99b94570678118faf33143bab7ce976e810a28a28fa8146e06ff6ec040

Case Number: 25VECV04168 Hearing Date: July 17, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SHERI PASCOE-WILSON,

Plaintiff,

vs.

OCEAN VIEW PSYCHIATRIC HEALTH FACILITY,  
and DOES 1 to 10, Inclusive.

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25VECV04168

ORDER

GRANTING DEFENDANT COLLABORATIVE NEUROSCIENCE NETWORKS, LLC', dba OCEAN VIEW  
PSYCHIATRIC HEALTH FACILITY, MOTION TO QUASH SERVICE OF SUMMONS

I.

BACKGROUND

Plaintiff Sheri

Pasco-Wilson ("Plaintiff") brings this negligence action against Defendant Collaborative  
Neuroscience Networks, LLC dba Ocean View Psychiatric Health Facility  
(erroneously sued as Ocean View Psychiatric Health Facility) ("Defendant").

Plaintiff alleges Defendant and its agents and employees negligently discharged  
Plaintiff from their psychiatric facility knowing her current medications  
rendered her incapacitated to drive.

Defendant, specially

appearing, moves to quash service of summons.

II.

## PROCEDURAL

### HISTORY

On July 25,  
2025, Plaintiff filed a Complaint.

On March 12,  
2026, Plaintiff filed a First Amended Complaint ("FAC") alleging (1) General  
Negligence, (2) General Negligence, (3) Negligent Hiring and Supervision, and  
(4) Gross Negligence.

On June 25,  
2026, Defendant filed the instant Motion.

On July 14,  
2026, Plaintiff filed an Opposition.

III.

### LEGAL STANDARD

Code of Civil

Procedure § 418.10(a)(1)[1] provides,

"[a] defendant, on or before the last day of his or her time to plead or within  
any further time that the court may for good cause allow, may serve and file a  
notice of motion... [t]o quash service of summons on the ground of lack of  
jurisdiction of the court over him or her." A motion to quash must be granted  
if the court finds that either (1) there is no basis for exercising personal  
jurisdiction over the defendant or (2) service on the defendant was improper. (See  
Ziller Elecs. Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1229.)<sup>2</sup> When a  
defendant moves to quash service of the summons and complaint, the plaintiff  
has "the burden of proving the facts that did give the court jurisdiction, that  
is the facts requisite to an effective service." (Coulston v. Cooper (1966)  
245 Cal.App.2d 866, 868.)

IV.

### ANALYSIS

Defendant moves

to quash service of summons on grounds service was defective because Plaintiff's  
process server (1) did not comply with CCP § 415.20(a) and (2) makes no showing

of reasonable diligence to effect personal service on Jack Stephens ("Stephens"), Defendant's agent for service of process. (See Mot. at 3:20-23, 4:4-6.) As to the former, Defendant contends Plaintiff's process server served Mary Grace Osoteo ("Osoteo"), a licensed vocational nurse employed by Defendant who has no level of authority or leadership at Defendant's organization. (See Mot. at 2:13-14; Declaration of David D. Wagmeister filed July 8, 2026 ("Wagmeister Decl."), ¶ 11, Ex. A, Declaration of Mary Grace Osoteo, ¶¶ 2-3.) Osoteo attests she was served with the Summons and Complaint when she opened the secured door to Defendant's facility's fifth floor unit. (See Wagmeister Decl., ¶ 11, Ex. A, Declaration of Mary Grace Osoteo, ¶¶ 4-5.) Mr. Wagmeister also attests Osoteo does not have a connection to Stephens. (See id., ¶ 6.)

In Opposition, Plaintiff argues three attempts at service before resorting to substitute service are not required with corporate defendants and the motion is untimely pursuant to Code of Civil Procedure §§ 415.20(a)(service is deemed complete 10 days after mailing) and 418.10 (a motion challenging service must be filed within 30 days of service).

First of all, Plaintiff's Opposition was filed just three days before the hearing on the instant motion and is therefore itself untimely. The Court will nevertheless, in its discretion, consider it. Secondly, Defendant's Motion is not untimely because Plaintiff miscalculated when service was deemed effected by not taking into account May 25, 2026, was Memorial Day; this means service is effective the next court day, May 26, 2026. Defendant filed the Motion exactly 30 days after that day on June 25, 2026. Thus, it is timely.

As for the substantive merits of the Motion, the Court finds Plaintiff's Proof of Service creates a rebuttable presumption of proper service.[2] (See Chinese Theatre, LLC v. Starline Tours USA, Inc. (2025) 115 Cal.App.5th 1048, 1059; Wagmeister Decl., ¶ 13, Ex. C.) Second, the Court finds Defendant offers contradictory evidence that rebuts that presumption. To effectuate substitute service on an entity defendant, a copy of the summons and complaint must be left in the office of the person authorized to be served on behalf of the entity during usual office hours "with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served

at the place where a copy of the summons and complaint were left.” (Code Civ. Proc. § 415.20(a).) “[T]he person subserved at either a business location or a residence must have some reasonable connection to the individual to be served or hold some sort of close relationship to that individual that ensures the likelihood the documents will be passed on to the intended recipient...We conclude the phrase ‘apparently in charge’ cannot reasonably be read to validate service on any employee found at a business location. There must be some indication warranting a finding the employee is someone ‘apparently in charge’ and reasonably likely to deliver the service documents to the intended recipient and the service declarations should reflect some basic facts upon which the finding was made.” (Chinese Theatre, 115 Cal.App.5th at 1058-59.)

Here,

Defendant’s evidence shows Osoteo is not the person apparently in charge of Stephen’s office. The evidence shows Osoteo is a licensed vocational nurse without any level of authority in Defendant’s organization. This evidence contradicts that she is an “Admin Assistant/Person in Charge” as stated in the Proof of Service. Further, the evidence shows Osoteo was not served in Stephen’s office, as she was served on the fifth floor’s psychiatric unit, and that Osoteo has no connection to Stephens. Plaintiff’s Opposition is silent on this point so Plaintiff has failed to adequately rebut Defendant’s argument and proof. Thus, the Court finds Plaintiff did not comply with section 415.20(a) in effecting substitute service on Defendant.

Finally, as

to Defendant’s second ground for moving to quash service of summons, the Court does not find this is a valid reason to quash service of summons. The Court agrees with Plaintiff that no showing of reasonable diligence is necessary for substitute service on entity defendants. (See Code Civ. Proc. § 415.20(a).)

Based on the

foregoing, the Court GRANTS Defendant’s Motion to Quash Service of Summons.

V.

## CONCLUSION

Based on the

foregoing, the Court GRANTS Specially Appearing Defendant’s Motion to Quash Service.

The Court

therefore continues the Case Management Conference and Order to Show Cause re:  
Sanctions for Failure to Serve Pursuant to Rule of Court, rule 3.110(f), and Code  
of Civil Procedure §§ 128, 177, and 177.5 to October 22, 2026, at 8:30 a.m.

IT

IS SO ORDERED.

DATED: July 17, 2026

Hon. Michael R. Amerian

Judge,  
Superior Court

[1] All statutory references  
are to California codes unless stated otherwise.

[2] The Court notes Plaintiff  
did not file a Proof of Service until July 15, 2026.